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Case Number: 24STCV18083 Hearing Date: September 16, 2026 Dept: 509

Jose R. Solano v. Orange Kangaroo, LLC, et al.

(1) MOTION REQUIRING PLAINTIFF TO FURNISH SECURITY

(2) DEMURRER TO COMPLAINT

(3) MOTION TO STRIKE

(4) DEMURRER TO COMPLAINT

MOVING PARTY: (1): Defendants Defendant Orange Kangaroo, LLC; Harrison S. Won; Yoomi Won; and Yosemite Lopez

(2) & (3): Defendant Orange Kangaroo, LLC; Harrison S. Won; and Yoomi Won

(4): Defendant Yosemite Lopez

RESPONDING PARTY(S): (1)-(3): Plaintiff Jose R. Solano; (4) None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Jose R. Solano (Plaintiff) brings this action against defendants Orange Kangaroo, LLC, Harrison S. Won, Yoomi Won, and Yosemite Lopez, (collectively, Defenadants) seeking quiet title to the property at 5502 Dobbs St. #74, Los Angeles, CA 90032. Plaintiff brings causes of action for: (1) quiet title; (2) fraud; (3) slander of title; (4) cancellation of written instrument; and (5) declaratory judgment.

There are three actions currently pending between the parties:

-Unlawful Detainer Action: Orange Kangaroo, LLC v. Jose R. Solano, et al. (LASC No. 24STUD06273.)

-Civil Quiet Title Action: Jose R. Solano v. Orange Kangaroo, LLC (LASC No. 25STCV23323.) filed August 8, 2025, during the stay in this action.

-Federal Action: Jose R. Solano v. Orange Kangaroo, LLC, et al. (US Central District, Case No: 8:24-cv-01587-DMG-PP.)

Defendants Orange Kangaroo, LLC, Harrison S. Won, and Yoomi Won (Orange Kangaroo) brought a demurrer to the Complaint. Plaintiff opposed.

On December 19, 2024, this Court stayed this matter in the entirety pending the Plaintiff's bankruptcy proceedings.

On June 22, 2026, this Court lifted the stay and rescheduled this motion to July 2, 2026.

On July 2, 2026, Defendants noted that Plaintiff has been declared a vexatious litigant and they requested Plaintiff post bond. The Court continued the hearing to allow Defendants to file further briefing on the issue of whether Plaintiff is required to furnish the bond.

On August 8, 2026, the Court heard argument on the request for Plaintiff to post bond. The Court deemed all "papers filed by defendant regarding the issue of plaintiff posting a bond to be a motion" and allowed Plaintiff's supplemental opposition to be filed by September 11, 2026. (8/4/26 Minute Order.)

On September 10, 2026, Plaintiff filed an opposition to Defendants' Motion Requiring Plaintiff to Furnish Security.

The Court now considers the entirety of the record in addressing the motions.

TENTATIVE RULING:

Defendants' Motion to Furnish Security is GRANTED.

The amount of security in the instant action is set as \$20,000.00 to be furnished within 30 days of this order. If Plaintiff fails to adequately furnish said security within 30 days, the action shall be dismissed pursuant to Code of Civil Procedure, section 391.4.

An OSC Re: Dismissal for Plaintiff's Failure to Post the \$20,000.00 Bond is scheduled for October 19, 2026; 8:30 a.m.

Orange Kangaroo's Demurrer and Motion to Strike and Yosemite Lopez's Demurrer are CONTINUED to October 19, 2026. If Plaintiff posts the required bond, both demurrers will be calendared for hearing.

Defendants to give notice.

DISCUSSION:

Motion Requiring Plaintiff to Furnish Security

I. Judicial Notice

Orange Kangaroo requests judicial notice of: The October 21, 2025, Minute Order in, Jose R. Solano v. Orange Kangaroo, LLC (LASC No. 25STCV23323), the Dismissal of the bankruptcy of Jose Solano, Judgment and Findings which duplicate the allegations against these Defendants in this case but filed in the United States District Court, Additional Court Findings by District Court Judge Bernal, and the Vexatious Litigation Order (7/20/26 RJN.)

Pursuant to Orange Kangaroos' request and without objection, the Court GRANTS Orange Kangaroos' request for judicial notice.

Yosemite Lopez requests judicial notice of a further thirty-two exhibits. (7/28/26 RJN.)

Pursuant to Yosemite Lopez's request and without objection, the Court GRANTS Yosemite Lopez's request for judicial notice.

II. Legal Standard

Code of Civil Procedure, section 391.1(a) provides:

In any litigation pending in any court of this state, at any time until final judgment is entered, a defendant may move the court, upon notice and hearing, for an order requiring the plaintiff to furnish security or for an order dismissing the litigation pursuant to subdivision (b) of Section 391.3. The motion for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant.

In determining whether the plaintiff has a reasonable probability of prevailing, the "court shall consider any evidence, written or oral, by witnesses or affidavit, as may be material to the ground of the motion." (Code of Civ. Pro. § 391.2.) "[I]f, after hearing the evidence upon the motion, the court determines that the plaintiff is a vexatious litigant and that there is no reasonable probability that the plaintiff will prevail in the litigation against the moving defendant, the court shall order the plaintiff to furnish, for the benefit of the moving defendant, security in such amount and within such time as the court shall fix." (Code of Civ. Pro. § 391.3(a).)

Thus, "[i]n pending litigation, a defendant may have the plaintiff declared a vexatious litigant and, if the plaintiff has no reasonable probability of prevailing, ordered to furnish security. If the plaintiff fails to furnish the security, the action will be dismissed." (Shalant v. Girardi (2011) 51 Cal.4th 1164, 1171 [citing §§ 391.1–391.6].)

In moving for an order requiring a vexatious litigant to post security, the defendant has the burden of showing there is no reasonable likelihood plaintiff will prevail in the action. (Golin v. Allenby (2010) 190 Cal.App.4th 616, 640, 642.) "A court's decision that a vexatious litigant does not have a reasonable chance of success in the action is based on an evaluative judgment in which the court weighs the evidence." (Id. at p. 636.)

III. Analysis

A. Background

Defendants move to require Plaintiff furnish security in the amount of \$20,000.00.

This is, in essence, a quiet title action in which Plaintiff alleges that on May 1, 2024, Defendants recorded a fraudulent "Trustee Deed Upon Sale." Plaintiff alleges the "Trustee's Deed Upon Sale is wholly void due to fraud, irregularity in foreclosure procedures, lack of proper notice, and fictitious or fabricated consideration." (Compl. at p.3)

There are two other actions between the parties dealing with the same real property Plaintiff seeks ownership in this action:

-Civil Quiet Title Action: Jose R. Solano v. Orange Kangaroo, LLC (LASC No. 25STCV23323.) filed August 8, 2025, during the stay in this action.

-Federal Action: Jose R. Solano v. Orange Kangaroo, LLC, et al. (US Central District, Case No: 8:24-cv-01587-DMG-PP.)

In Jose R. Solano v. Orange Kangaroo, LLC (LASC No. 25STCV23323), the court dismissed the action after Plaintiff failed to post bond pursuant to Code of Civil Procedure, section 391.4. (RJN Ex., 1.)

In Jose R. Solano v. Orange Kangaroo, LLC, et al. (US Central District, Case No: 8:24-cv-01587-DMG-PP) the action was ordered dismissed pursuant to Orange Kangaroo's Motion to Dismiss. (RJN Ex., 2.)

As a threshold issue, Plaintiff has already been declared a vexatious litigant in Jose R. Solano v. Orange Kangaroo, LLC (LASC No. 25STCV23323). (See 10/21/25 Minute Order and Prefiling Order in 25STCV23323; see Orange Kangaroo RJN Ex. 4.) That element is met. (Hupp v. Solera Oak Valley Greens Assn. (2017) 12 Cal.App.5th 1300, 1311 ["Where a plaintiff has already been declared vexatious, a defendant moving under section 391.7 need not again establish the plaintiff's status."])

As a result, the Court turns to Plaintiff's probability of prevailing in this action.

B. Plaintiff's Probability of Prevailing

Defendants argue it is highly likely that they, and not Plaintiff, will prevail in the underlying case. The Court agrees.

First, the issue presented in Plaintiff's complaint was examined in Jose R. Solano v. Orange Kangaroo, LLC, et al. (US Central District, Case No: 8:24-cv-01587-DMG-PP) in which the Federal Court dismissed Plaintiff's quiet title claim. Then Plaintiff filed the action in Jose R. Solano v. Orange Kangaroo, LLC (LASC No. 25STCV23323) in which Plaintiff sought the exact same relief. That action was dismissed after the court there found Plaintiff's claims were unlikely to succeed. Indeed, Plaintiff had two separate opportunities to fully litigate this proceeding and in both, Plaintiff's action did proceed beyond the challenges to the pleadings. There is no evidence that Plaintiff's action will lend itself to a different result in this action and it appears from those records, that Defendants are highly likely to succeed in defense of this action.

Second, Plaintiff's complaint and subsequent filings are devoid of any factual allegations. Plaintiff broadly alleges terms such as "fraud" and "civil conspiracy" without any facts giving rise to such. There is currently nothing alleged in the complaint that would give rise to a reasonably viable claim nor does any of the documents filed in this action suggest any claim is viable.

In opposition, Plaintiff alleges that:

The documentary packet contains multiple recorded instruments that form the asserted foreclosure chain, including the original 2006 Deed of Trust, a 2012 Assignment of Deed of Trust recorded as Instrument No. 20120373737, a Notice of

Default, a Notice of Trustee's Sale recorded December 19, 2023, and the May 1, 2024 Trustee's Deed Upon Sale. The Trustee's Deed Upon Sale is followed by post-foreclosure possession documents. A three/ninety-day notice to quit dated May 10, 2024 was directed to Jose R. Solano, Soledad M. Solano, and other occupants of the premises, and identified Orange Kangaroo, LLC as owner. This sequence shows that Orange Kangaroo's claim to possession flowed from the title it asserted through the Trustee's Deed Upon Sale. These documents create a direct evidentiary bridge between the disputed foreclosure instruments, the resulting Trustee's Deed Upon Sale, Orange Kangaroo's claimed ownership, and the effort to remove Plaintiff from the property. Because Plaintiff challenges the legal validity of that bridge, the action presents a live and material title controversy for determination on the merits.

(Opp. at pp. 5:22-6:11.)

As in the complaint, Plaintiff makes the same accusations without any facts supporting the allegation that the trustee sale was invalid. Plaintiff has filed numerous actions, opposed an unlawful detainer, and filed this complaint without ever presenting a single factual allegation, let alone evidence, to support his claim that the Trustee Sale is void. The Court must reasonably conclude that there exists no factual basis to support these claims. Therefore, it is highly likely that Defendants prevail in this action.

Third, and most persuasive, Defendants have put forth overwhelming evidence that Plaintiff's allegations in the complaint are baseless. (See e.g. Yosemite Lopez RJN, Exs. 1-14.) Defendants have provided substantial evidence that the property transfer at was done in compliance with applicable laws and Plaintiff has no grounds to seek quiet title to the property or for damages flowing from the transaction. Despite the numerous hearings, Plaintiff has provided no evidence in support of his claims but rather relies solely on legal jargon and general allegations of misconduct as discussed above. Plaintiff was given the right to present evidence and has been given numerous opportunities to do. (See *Bravo v. Ismaj* (2002) 99 Cal.App.4th 211, 223.) Instead, Plaintiff has presented none.

In the end, Defendants have provided overwhelming evidence in support of their defense to this action while Plaintiff has failed to demonstrate any viability to his complaint. The Court finds that it is highly likely that Defendants, and not Plaintiff, will prevail in this action.

Accordingly, Defendants' Motion to Furnish Security is GRANTED.

The amount of security in the instant action is set as \$20,000.00. If Plaintiff fails to adequately furnish said security within 30 days, the action "shall be dismissed as to the defendant for whose benefit it was ordered furnished." (*Golin v. Allenby* (2010) 190 Cal.App.4th 616, 634.)

An OSC Re: Dismissal for Plaintiff's Failure to Post the \$20,000.00 Bond is therefore scheduled for October 19, 2026.

Orange Kangaroo's Demurrer and Motion to Strike and Yosemite Lopez's Demurrer

"If the court issues an order to furnish security, the action is automatically stayed from the time the motion was filed until 10 days after plaintiff posts the required security." (*Golin v. Allenby*, supra, 190 Cal.App.4th at p. 634; Code Civ. Pro. §391.6.)

Accordingly, Orange Kangaroo's Demurrer and Motion to Strike and Yosemite Lopez's Demurrer are CONTINUED to October 19, 2026. If Plaintiff posts the required bond, both demurrers will be calendared for hearing.

IT IS SO ORDERED.

Dated: September 16, 2026 _____

Randolph M. Hammock

Judge of the Superior Court